

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
BENJAMIN VELEZ AND L.R., an infant by his natural
mother and legal guardian, JOANNE REBOLLO,

Plaintiffs,

-against-

CITY OF NEW YORK, FREDDY CANTILLO,
VINCENZO CRETA, CHRISTOPHER HOSEIN, PATRICK
JEANBAPTISTE, BOBBY MOHIP, AND JOHN OR JANE
DOE 1-10,

Defendants.
-----X

SUMMONS

Index No.
Purchased:

Plaintiff selects Kings County as the
place of trial

Basis of Venue is Locus of Injury

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 13, 2023


SIM & DEPAOLA, LLP
By: ATAUR RAQUIB, ESQ.
Attorneys for Plaintiff(s)
42-40 Bell Blvd., Suite 405
Bayside, New York 11361
T: (718) 281-0400

TO: **CORPORATION COUNSEL OF THE CITY OF NEW YORK**
100 Church Street
New York, New York 10007

FREDDY CANTILLO

Tax No. 952542, Shield No. 03905
Via NYPD Headquarters
1 Police Plaza Path
New York, New York 10038

VINCENZO CRETA

Tax No. 962332, Shield No. 19901
Via NYPD Headquarters
1 Police Plaza Path
New York, New York 10038

CHRISTOPHER HOSEIN

Tax No. 959417, Shield No. 03863
Via NYPD Headquarters
1 Police Plaza Path
New York, New York 10038

PATRICK JEANBAPTISTE

Tax No. 958174, Shield No. 15908
Via NYPD Headquarters
1 Police Plaza Path
New York, New York 10038

BOBBY MOHIP

Tax No. 934005, Shield No. 21083
Via NYPD 75th Precinct
1000 Sutter Avenue
Brooklyn, New York 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
BENJAMIN VELEZ AND L.R., an infant by his natural
mother and legal guardian, JOANNE REBOLLO,

Plaintiffs,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, FREDDY CANTILLO,
VINCENZO CRETA, CHRISTOPHER HOSEIN,
PATRICK JEANBAPTISTE, BOBBY MOHIP, AND
JOHN OR JANE DOE 1-10,

Defendants.

-----X

Plaintiffs, **BENJAMIN VELEZ**, and **L.R.**, an infant by his natural mother and legal guardian, **JOANNE REBOLLO**, by and through their undersigned attorneys, **SIM & DEPAOLA, LLP**, for their complaint against the Defendants, **CITY OF NEW YORK, FREDDY CANTILLO, VINCENZO CRETA, CHRISTOPHER HOSEIN, PATRICK JEANBAPTISTE, BOBBY MOHIP**, and **JOHN OR JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of his civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. The following claims arise from a July 5, 2019, incident, in which defendants, acting under color of state law, negligently, carelessly, or recklessly caused Plaintiffs to be injured in a motor

vehicle accident before causing them to be unlawfully stopped, battered and assaulted, searched, detained, and arrested in the vicinity of the intersection of Glenmore Avenue and Linwood Street, County of Kings, City of State of New York.

3. As a result, Plaintiff, **BENJAMIN VELEZ** (“Mr. Velez”) was unlawfully stopped, detained, questioned, searched and seized, and arrested by Defendants and deprived of their liberty over the course of approximately (10) days, and thereafter, Plaintiff was denied their right to fair trial and due process and maliciously prosecuted from the date criminal charges were falsely alleged against them and forward to prosecutors until the underlying criminal proceedings were terminated in favor of Plaintiff and dismissed and sealed pursuant to New York Criminal Procedure law on or about July 17, 2022.

4. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

5. Plaintiffs have served a notice of claim upon the City of New York in compliance with Section fifty-e of the New York General Municipal Law (GML § 50-e).

6. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

7. Plaintiffs have complied with the municipal defendant’s demand for an examination, pursuant to GML § 50-h, or said demand was untimely made.

8. This action and associated claims have been timely commenced within three (3) years after the occurrences upon which they are based and upon availing Executive Order 202.8 *et seq.* issued by former Governor Andrew Cuomo in response ongoing COVID-19 pandemic that tolled the

statute of limitations for the period from March 20, 2020, to November 4, 2020, in addition to infancy tolling as prescribed by CPLR § 208.

9. Plaintiffs seek monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

10. Plaintiff, Mr. Benjamin Velez ("**Mr. Velez**"), is a Hispanic or Latino male, who presently resides in Brooklyn, New York.

11. Plaintiff, L.R., ("**Baby L.R.**"), is a minor and infant child, who presently resides in Brooklyn, New York under the care and custody of his natural mother and legal guardian, Joanne Rebollo.

12. Plaintiff-Guardian, Ms. Joanne Rebollo ("**Ms. Rebollo**") is an adult female, who is the natural mother and legal guardian of Plaintiff, Baby L.R. and presently resides in Brooklyn, New York.

13. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

14. At all times relevant hereto, defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD defendants herein.

15. At all times here relevant herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

16. At all relevant times herein, Defendant FREDDY CANTILLO (“CANTILLO”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Shield No. 03905 and Tax No. 952542. Defendant CANTILLO is currently assigned to the NYPD Internal Affairs Bureau as a sergeant. Defendant CANTILLO is being sued in their official and individual capacities.

17. At all relevant times herein, Defendant VINCENZO CRETA (“CRETA”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Shield No. 19901 and Tax No. 962332. Defendant CRETA is currently assigned to the NYPD Warrant Squad as a police officer. Defendant CRETA is being sued in their official and individual capacities.

18. At all relevant times herein, Defendant CHRISTOPHER HOSEIN (“HOSEIN”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Shield No. 03863 and Tax No. 959417. Defendant HOSEIN is currently assigned to the NYPD Warrant Squad as a detective. Defendant CRETA is being sued in their official and individual capacities.

19. At all relevant times herein, Defendant PATRICK JEANBAPTISTE (“JEANBAPTISTE”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Shield No. 15908 and Tax No. 958174. Defendant JEANBAPTISTE is currently assigned to the NYPD Transit Bureau Subway Safety Task Force as a police officer. Defendant JEANBAPTISTE is being sued in their official and individual capacities.

20. At all relevant times herein, Defendant BOBBY MOHIP (“MOHIP”) was a police officer, detective, sergeant, supervisor, or policymaker employed by the NYPD, under Shield No. 21083 and Tax No. 934005. Defendant MOHIP is currently assigned to the NYPD 75th Precinct as a police officer. Defendant MOHIP is being sued in their official and individual capacities.

21. At all relevant times, defendants JOHN OR JANE DOE 1-10 were police officers, detectives, sergeants, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of defendants.

22. At all relevant times herein, Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, MOHIP, and JOHN OR JANE DOE 1-10, were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, MOHIP, and JOHN OR JANE DOE 1-10, are being sued in their individual and official capacities.

23. At all relevant times herein, Defendant City of New York was the owner and/or operator of a police vehicle involved in this complained-of-incident. At this time, Plaintiff is not aware of said police vehicle identifying information as such knowledge is within exclusive possession of defendants.

24. At all relevant times herein, Defendants, including **CRETA, HOSEIN, and JEANBAPTISTE**, were operators of a police vehicle owned, managed, and maintained by Defendant City of New York.

25. At all relevant times herein, Plaintiff, **Mr. Velez**, was a driver and operator of a small red Honda motorbike vehicle owned by Plaintiff, **Ms. Rebollo**.

26. At all relevant times herein, Plaintiff **Baby L.R.**, was a lawful passenger of the aforesaid small red Honda motorbike vehicle in obedience of all laws, codes, ordinances, and statutes.

27. At all relevant times herein, Glenmore Avenue at its intersection with Linwood Street in Kings County, New York was and remains a public roadway and thoroughfare.

28. At all relevant times herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

29. That on July 5, 2019, at approximately 7:23 p.m. and continuing thereafter, in the vicinity of the intersection of Glenmore Avenue and Linwood Street, County of Kings, City of State of New York, Plaintiffs were caused to be injured in a motor vehicle accident and, afterwards, illegally stopped, seized and searched, battered and assaulted, detained, and arrested, by and/or at the direction of defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, MOHIP, and JOHN OR JANE DOE 1-10.

30. That on said date and time, Plaintiffs, Mr. Velez and Baby L.R., were lawfully present and driving on the aforesaid small red Honda motorbike vehicle traveling on Glenmore Avenue, in the vicinity of this complained-of-incident.

31. That on said date and time, Defendants, including CRETA, HOSEIN, and JEANBAPTISTE, were present in the aforesaid police vehicle heading southbound on Linwood Street towards its intersection with Glenmore Avenue.

32. That at approximately 7:23 P.M. on or about July 5, 2019, at the intersection of Glenmore Avenue and Linwood Street, County of Kings, City of State of New York, the aforesaid police vehicle owned, managed, and maintained by Defendant City and operated by Defendants,

including Creta, Hosein, and Jeanbaptiste illegally, recklessly, carelessly, and/or negligently entered into said intersection and collided with and violently struck the aforesaid small red Honda motorbike vehicle operated by Plaintiff, Mr. Velez, due to the carelessness, recklessness, and negligent operation of the aforesaid police vehicle owned and operated by Defendants, including City, Creta, Hosein, and Jeanbaptiste, and no fault on part of the Plaintiffs. The aforesaid collision caused Plaintiffs to sustain serious, and upon and belief, permanent physical injuries.

33. That the above motor vehicle collision of July 5, 2019, was caused solely by the negligence, carelessness, and recklessness of the defendants, in driving their vehicle in an unsafe manner, in failing to keep proper control of their vehicles, in failing to abide by traffic lights and/or signs, in driving their vehicles at an unsafe and excessive speed, in driving their vehicle at an unsafe speed given the prevailing conditions, failing to reasonably apply the brakes and/ or slow their vehicle in light of the prevailing roadway, traffic conditions, or lawful pedestrians crossing the street, in disregarding traffic control markings or devices, in failing to proceed with caution, in failing to pay attention to traffic conditions, in driving their vehicles without exercising due caution, in failing to maneuver their vehicle in a safe manner, in failing to abide by the rules of the road and traffic ordinances, in negligently entrusting use of the aforesaid motor vehicles to an unskilled and unreasonably dangerous driver, in failing to make timely use of the brakes and steering mechanism, and in operating their vehicle contrary to traffic ordinances and laws.

34. That as a result of the forgoing, Plaintiffs, Mr. Velez and Baby L.R. sustained severe, serious and permanent injuries as defined by Section 5102 (d) of the Insurance Law of the State of New York and as a result Plaintiff is entitled to recover for such non-economic losses as are not

included within the definition of “basic economic loss” as set forth in Section 5102 (a) of the Insurance Law of the State of New York.

35. That Plaintiffs, Mr. Velez and Baby L.R., sustained serious injuries and economic loss greater than basic economic loss as defined by Section 5104 of the Insurance of the State of New York.

36. That Plaintiffs, Mr. Velez and Baby L.R., are “covered person[s]” as defined by Section 5102 (j) of the Insurance Law of the State of New York.

37. That Plaintiffs, Mr. Velez and Baby L.R., are not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or which no-fault insurance is obligated to reimburse to Plaintiff. Plaintiff is seeking to recover only those damages not recoverable through no-fault insurance under the facts and circumstances in this action.

38. That Plaintiffs, Mr. Velez and Baby L.R., are not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or which no-fault insurance is obligated to reimburse to Plaintiff.

39. Plaintiffs are seeking to recover only those damages not recoverable through no-fault insurance under the facts and circumstances in this action.

40. As a result, Plaintiffs’ persons were caused to be suddenly and immediately launched off the aforesaid red Honda motorbike vehicle, to come into forceful contact with the hardened concrete ground of the roadway, to suffer substantial pain, the aggravation of injuries sustained just moments prior, shock, mental anguish, and emotional distress.

41. Thereafter, at some point, Defendants, including CANTILLO and MOHIP then arrived in the vicinity of this complained-of-incident.

42. Thereafter, Emergency Medical Technicians (“EMTs”) arrived in the vicinity of this complained of incident and treated Plaintiff, Baby L.R., for injuries he sustained due to the conduct of Defendants, including CRETA, HOSEIN, and JEANBAPTISTE.

43. After making sure Baby L.R. received medical attention, Plaintiff, Mr. Velez, then attempted to request medical attention from the EMTs for himself when Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP then illegally approached, stopped, and detained Mr. Velez while demanding a form of identification from him, without probable cause, reasonable suspicion, valid search or arrest warrant, or any legal justification whatsoever as to the commission of unlawful conduct on the part of Plaintiff.

44. Plaintiff, Mr. Velez, then continued to request medical attention for injuries he sustained just prior when Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, refused Plaintiff medical attention, demanded a form of identification, and falsely accused him of a criminal offense before illegally seizing his person with their outstretched hands reaching out and grabbing him violently about his head and body, without probable cause, reasonable, suspicion, valid search or arrest warrant, or any legal justification whatsoever.

45. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP 10, then unlawfully searched Plaintiff, Mr. Velez, without their consent, by aggressively shoving and rifling through Plaintiff’s pockets and clothing without probable cause.

46. Upon information and belief, Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, thereafter recovered no contraband from Plaintiffs indicating that they had committed a criminal offense to justify such a bodily invasion.

47. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, then proceeded to violently contort Plaintiff, Mr. Velez’s arms behind their backs so that they

could apply metal handcuffs disregarding Plaintiff's complaints that the cuffs were placed on too tightly causing them significant discomfort, pain, and the aggravation of injuries sustained just moment prior.

48. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, ignored all of Plaintiff's pleas to loosen the handcuffs, which resulted in Plaintiff's wrists and hands sustaining loss of feeling, redness, and swelling.

49. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, then placed Mr. Velez in a police vehicle and transported them against their will to the NYPD 75th Precinct where they were fingerprinted, photographed, questioned as to their pedigree, searched or strip-searched, interrogated without presence of counsel or the reading of their *Miranda* rights, denied medical attention for injuries sustained to the conduct of Defendants, including CRETA, HOSEIN, and JEANBAPTISTE, and illegally detained in a dank and dirty cell for approximately fourteen (14) hours before being placed in a police vehicle and transported against their will to Central Booking where they were fingerprinted, photographed, searched or strip-searched, and illegally detained in a dank and dirty cell for approximately twelve (12) hours before being transported to Brookdale Hospital after their arraignment.

50. Thereafter, Plaintiff was treated at Brookdale Hospital while in custody for injuries he sustained due to the conduct of Defendants, including CRETA, HOSEIN, and JEANBAPTISTE, over the course of approximately six (6) hours before being placed in a police vehicle and transported against his will to Rikers Island Correctional Facility where Plaintiff, Mr. Velez was thereafter illegally incarcerated and forced to endure , *inter alia*, gratuitous assaults and batteries to their person from other inmates or correction officers, strip-searches with attendant cavity inspections, poor nutritional diet and living conditions, exposure to chemical spray, smoke

inhalation, and all the other attendant indignities associated with illegal incarceration over the course of seven (7) days before being released from physical custody on or about July 15, 2019.

51. Defendant HOSEIN signed and forwarded the charges against Plaintiffs, in which they knowingly affirmed the truth of the fabricated allegations against Plaintiffs.

52. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, lacked any probable cause or reasonable suspicion to arrest Plaintiffs, because Defendants never observed Plaintiffs commit any crime or violation of the law.

53. Due to the lack of probable cause for the seizure of Plaintiffs' persons, the aforementioned conduct constituted the completed torts of Assault and Battery by Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP.

54. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, knowingly, maliciously, and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which Defendants falsely attributed to Plaintiffs before forwarding to prosecutors.

55. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, engaged in fraud, the suppression of evidence, perjury, and a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

56. Plaintiff, Mr. Velez, asserts that Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, falsely arrested, wrongfully detained, and maliciously prosecuted Plaintiffs with the full knowledge that they had committed no crimes or violations of the law.

57. Plaintiff, Mr. Velez, therefore, asserts that due to the clear absence of any viable probable cause to warrant their criminal prosecution, at any point, they were denied their rights to a fair trial and due process and were maliciously prosecuted, until the criminal proceedings were irrefutably

terminated in favor of Plaintiffs when all adverse charges against them under the Bronx County Criminal Court Docket No. CR-025620-19KN were dismissed and sealed on or about on or about July 17, 2022 pursuant to § 160.50 of New York Criminal Procedure law, likely due to a lack of probable cause to believe Plaintiff committed a criminal offense.

58. As a result, the Plaintiff, Mr. Velez, was caused to be deprived of their liberty over the course of approximately (10) days.

59. As a result, Plaintiffs, Mr. Velez and Baby L.R., were caused to have serious physical and mental injuries, upon information and belief, that are continuing and believed to be permanent due to the negligent, reckless, careless, and illegal conduct of Defendants, including Creta, HOSEIN, and JEANBAPTISTE in the operation of the aforementioned police vehicle.

60. As a result, Plaintiffs' physical and emotional injuries sustained due to the above were exacerbated and aggravated due to aforementioned conduct of Defendants, including CANTILLO, Creta, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10.

61. At all times relevant hereto, Defendants, including CANTILLO, Creta, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, were involved in the decision to stop, seize, and arrest Plaintiff, Mr. Velez, without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

62. At all times relevant hereto, Defendants, including CANTILLO, Creta, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, subjected Plaintiffs to excessive force, or failed to intervene when they observed others subjecting Plaintiffs to excessive force.

63. Defendants, including CANTILLO, Creta, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, arrested and caused a criminal prosecution to be initiated against

Plaintiff, Mr. Velez, because of their desires to use plaintiff's arrest and criminal prosecution to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

64. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, arrested, applied excessive force and initiated a malicious prosecution against Plaintiff, Mr. Velez in retaliation for plaintiff's exertions of their constitutional right to freely express their opinion and inquiries, namely plaintiffs' displeasure with the manner in which defendants addressed them when he was attempted seek medical attention for Plaintiff, Baby L.R., and himself.

65. As a result, Plaintiffs' mental health issues were aggravated and they developed a severe fear of police officers, which prevented them from venturing from their house for a period of time and has effectively permanently chilled their desire and ability to communicate with police officers.

66. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, unlawfully targeted and decided to stop and effect unlawful seizures of plaintiffs due to solely to their statuses as Hispanic, Latino, or African American individuals.

67. Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned

non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

68. Plaintiffs assert that the Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, who violated plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

69. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

70. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the

NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

71. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain system in throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

72. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

73. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled "Ex-Cop Details NYPD

‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

74. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

75. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

76. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently

disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

77. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

78. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

79. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by

the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

80. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiffs’ arrests without probable cause.

81. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

82. Defendants’ actions, pursuant to plaintiffs’ underlying arrests, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiffs’ civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

83. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective

policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

84. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

85. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10.

86. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

87. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

88. The aforementioned acts of Defendants, including CANTILLO, CRETA, HOSEIN, JEANBAPTISTE, and MOHIP, and JOHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of plaintiffs' civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

89. As a direct or proximate result of said acts, plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

90. The above paragraphs are hereby incorporated by reference as though fully set forth.

91. Plaintiff, Mr. Velez, engaged in speech and activities that were protected by article I, section 8, of the constitution of the State of New York.

92. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

93. Defendants' retaliatory actions against plaintiff resulted in deprivations to their liberty and the initiation of criminal charges against them in the absence of probable cause.

94. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or

activities or by chilling their desire to further participate or engage in such protected speech or activities.

95. Accordingly, Plaintiff, Mr. Velez's' rights to engage in protected speech and activities, guaranteed and protected by article I, section 8, of the constitution of the State of New York, were violated by defendants.

96. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

97. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against Individual NYPD Defendants*

98. The above paragraphs are hereby incorporated by reference as though fully set forth.

99. Plaintiff, Mr. Velez engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

100. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

101. Defendants' retaliatory actions against plaintiff resulted in deprivations to their liberty and the initiation of criminal charges against them in the absence of probable cause.

102. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desires to further participate or engage in such protected speech or activities.

103. Accordingly, plaintiff's rights to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, were violated by defendants.

104. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

105. The above paragraphs are hereby incorporated by reference as though fully set forth.

106. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

107. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

108. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

109. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

110. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the constitution of the State of New York and Article II, Section 8, of the New York Civil Rights Law.

111. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

112. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under

42 U.S.C. § 1983 *Against Individual NYPD Defendants*

113. The above paragraphs are hereby incorporated by reference as though fully set forth.

114. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

115. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

116. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

117. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

118. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

119. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTIONFalse Arrest & False Imprisonment Under
New York State Law

120. The above paragraphs are hereby incorporated by reference as though fully set forth.

121. Defendants subjected Plaintiff, Mr. Velez to false arrest, false imprisonment, and the deprivation of liberty without probable cause.

122. Plaintiff was conscious of their confinement.

123. Plaintiff did not consent to their confinement.

124. The arrests and false imprisonments of plaintiff were not otherwise privileged.

125. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against Individual NYPD Defendants*

127. The above paragraphs are hereby incorporated by reference as though fully set forth.

128. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

129. The wrongful, unjustifiable, and unlawful apprehensions, arrests, detentions, and imprisonments of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

130. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

131. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law
Against Individual NYPD Defendants and Defendant K. BERNARD

132. The above paragraphs are hereby incorporated by reference as though fully set forth.

133. Defendants caused plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful or offensive touching.

134. Defendants engaged in and subjected plaintiffs to immediate harmful or offensive touching and battered them without their consent or other legal justification therefor.

135. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under

42 U.S.C. § 1983 *Against Individual NYPD Defendants*

137. The above paragraphs are hereby incorporated by reference as though fully set forth.

138. The Defendants violated Plaintiff, Mr. Velez's rights, under the Fourth and Fourteenth Amendments to the Constitution of the United States, because they used unreasonable force without the consent of plaintiffs.

139. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered them without their consent.

140. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under

New York State Law

141. The above paragraphs are hereby incorporated by reference as though fully set forth.

142. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiff, Mr. Velez to compel the compliance or forbearance of some act.

143. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiff, especially in the absence of any cognizable probable cause.

144. Defendants intended to inflict substantial harm upon plaintiff.

145. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiff.

146. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

147. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against Individual NYPD Defendants*

148. The above paragraphs are hereby incorporated by reference as though fully set forth.

149. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiff, Mr. Velez, to compel the compliance or forbearance of some act.

150. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against plaintiffs, especially in the absence of any cognizable probable cause.

151. Defendants intended to inflict substantial harm upon plaintiff.

152. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiff.

153. Defendants' actions therefore resulted in deprivations to plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

154. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Due Process Under

New York State Law

155. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

156. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

157. Defendants forwarded said fabrications and false information to prosecutors.

158. Defendants' actions resulted in deprivations to the liberty and freedom of movement of plaintiffs after legal process had attached following their arraignments in criminal court.

159. Accordingly, defendants violated plaintiff's rights to due process, pursuant to article I, sections 1, 2 & 6, of the constitution of the State of New York, and Article II, Section 12, of the New York Civil Rights Law.

160. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

161. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 *Against Individual NYPD Defendants*

162. The above paragraphs are hereby incorporated by reference as though fully set forth.

163. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

164. Defendants forwarded said fabrications and false information to prosecutors.

165. Defendants' actions resulted in deprivations to the liberty and freedom of movement of plaintiffs after legal process had attached following their arraignments in criminal court.

166. Accordingly, defendants violated Plaintiff Mr. Velez's rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

167. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

168. The above paragraphs are here incorporated by reference as though fully set forth herein.

169. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against plaintiffs, as defined in state or federal law, which presented a serious risk of physical injury to plaintiffs, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

170. Accordingly, defendants committed crimes of violence against plaintiffs and violated plaintiffs' rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

171. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

172. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

173. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

174. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of plaintiffs as the determinative factor in initiating law enforcement actions against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

175. Accordingly, defendants violated plaintiffs' rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

176. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

177. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State law

178. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

179. Plaintiff, Mr. Velez, is a member of a racial minority and protected class.

180. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

181. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

182. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

183. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

184. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.

185. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

186. Accordingly, defendants violated plaintiff's rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

187. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

188. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against Individual NYPD Defendants*

189. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

190. Plaintiff, Mr. Velez, is a member of a racial minority and protected class.

191. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

192. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

193. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

194. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

195. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

196. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

197. Accordingly, defendants violated plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

198. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

199. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against Individual NYPD Defendants*

200. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

201. Defendants engaged in a conspiracy against Plaintiff, Mr. Velez, to deprive them of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of their liberty or property without Due Process of law, in addition to plaintiffs' Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

202. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

203. As a result, Plaintiff sustained injuries to their persons, were deprived of their liberty, rights or privileges as citizens of the United States.

204. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of their civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

205. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

206. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

207. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

208. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Failure to Intervene Under New York State Law

209. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

210. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

211. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

212. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEETH CAUSE OF ACTION

Failure to Intervene Under 42 U.S.C. § 1983 *Against Individual NYPD Defendants*

213. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

214. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

215. Accordingly, the Defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

216. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

217. The above paragraphs are hereby incorporated by reference as though fully set forth.

218. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

219. Defendant City breached those duties of care.

220. Defendant City placed the individually named defendants herein in a position where they could inflict foreseeable harm.

221. Defendant City knew or should have known of the individual named defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiffs.

222. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiffs.

223. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 *Against Defendant City*

224. The above paragraphs are hereby incorporated by reference as though fully set forth.

225. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of those who may interact with the individually named defendants to such Constitutionally repugnant behavior, such as plaintiffs.

226. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

227. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to their deliberate indifference toward the rights of those who may come into contact with the defendant City's employee police officers, including the individually named police officers herein.

228. Defendant City's employee police officers engaged in such egregious and flagrant violations of plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to the exhibition of deliberate indifference by defendant City and its officials, policymakers or supervisors toward the rights of individuals, who may come into contact with defendant City's employee police officers, including the individually named defendants herein.

229. Defendant City's repeated willful refusals or unexcused failures to install or apply corrective or preventive measures constitutes its tacit approval or deliberate indifference with respect to violations of the civil or Constitutional rights of those who may come into contact with NYPD officers, including the individually named defendants herein.

230. Defendant City's conduct resulted in violations of plaintiffs' civil rights, under the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

231. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

232. The above paragraphs are here incorporated by reference as though fully set forth herein.

233. Defendants initiated the prosecution against Plaintiff, Mr. Velez.

234. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution could succeed.

235. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

236. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

237. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

238. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

239. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

240. The above paragraphs are here incorporated by reference as though fully set forth herein.

241. Defendants initiated the prosecution against Plaintiff, Mr. Velez.

242. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

243. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

244. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

245. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

246. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FOURTH CAUSE OF ACTION

Negligence Under
New York State Law

247. The above paragraphs are here incorporated by reference as though fully set forth herein.

248. Defendants owed a duty to Plaintiffs to operate their police vehicle in a safe and lawful manner.

249. Defendants breached that duty when they negligently caused their police vehicle to come into contact with Plaintiffs on their aforementioned motor bike vehicle.

250. As a result, Plaintiffs were caused to suffer injuries, upon information and belief, believed to be continuing and permanent.

251. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

252. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIFTH CAUSE OF ACTION

Gross Negligence Under
New York State Law

253. The above paragraphs are here incorporated by reference as though fully set forth herein.

254. Defendants owed a duty to Plaintiffs to operate their police vehicle in a safe and lawful manner.

255. Defendants breached that duty when they recklessly, carelessly, and intentionally operated the aforesaid police vehicle and drove it through a red-light traffic signal with severe disregard for other drivers and pedestrians similarly situated as Plaintiffs.

256. As a result, Plaintiffs were caused to suffer injuries, upon information and belief, believed to be continuing and permanent.

257. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

258. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) On the Twenty-Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- y) On the Twenty-Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- z) Awarding Plaintiffs compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

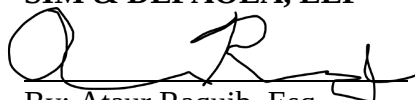
- aa) Awarding Plaintiffs reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;
- bb) Together with the costs and disbursements of this action with all interest then accrued.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
June 13, 2023

SIM & DEPAOLA, LLP



By: Ataur Raquib, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd., Ste 405

Bayside, NY 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Ataur Raquib, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 13, 2023



Ataur Raquib, Esq.